

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

2. ANGELA CAROCCI V. NICOLAS CAROCCI

25FL1254

On May 27, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on June 1st. She filed and served a declaration in support of her RFO on July 8, 2026.

Also on July 8th, Respondent filed and served Respondent's Evidentiary Objections to Petitioner's Declaration (MC-30 [sic]) and Exhibits A-G Served July 8, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on July 9, 2026 and reached agreements on some issues. A report with the agreements and recommendations was prepared and mailed to the parties on July 10th.

Respondent filed his Responsive Declaration to Request for Order and a supporting declaration thereto on August 7, 2026.

Petitioner filed and served her Reply Declaration to CCRC Report on August 12th and 11th respectively.

Petitioner is requesting the following orders: (1) Continue with the current custody schedule (Petitioner – Sunday at 5:00pm to Wednesday school drop off or 3:30pm on non-school days; Respondent – Wednesday at school pick up, or 3:30pm on non-school days to School drop off, or 3:30pm on non-school days, on Friday; and alternating weekends from Friday at school pick up, or 3:30 pm on non-school days to Sundays at 5:00pm); (2) All exchanges to occur at The Shakespeare Club located at 2940 Bedford Ave., Placerville; (3) Parties to utilize Talking Parents for communications; (4) Joint legal custody with final decision-making authority to Petitioner; (5) Respondent to refinance the properties located at 1750 Bear Rock and 1801 Bear Rock in Placerville into Respondent's name; (6) Respondent to be solely responsible for the debt and utilities for the properties located at 1750 Bear Rock and 1801 Bear Rock; (7) Petitioner to refinance the property located at 1093 Goyan Ave. in Placerville into her name; and (8) Petitioner to be solely responsible for the debt, utilities, and maintenance related to the 1093 Goyan Ave property.

Respondent objects to the court's consideration of Petitioner's July 8th declarations and the exhibits attached thereto. He objects on the following grounds: (1) Untimely service; lack of notice and opportunity to respond; (2) Lack of authentication and foundation; (3) Incomplete and misleading excerpts; (4) Improper argument and characterization; and (5) specific objections by exhibit.

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Respondent's objection on the basis of untimely service is overruled. The declaration and exhibits were filed and served well before Respondent filed his Responsive Declaration to Request for Order. He has therefore, had the opportunity to respond. Furthermore, the exhibits are submitted to show the difficulties in coparenting between the parties, this issue was raised in Petitioner's RFO. It is not a new issue.

Respondent's objection on the basis of foundation and authentication is overruled. Petitioner was the recipient of the text messages depicted in the exhibits to her declaration. In her declaration she states that the documents are what they purport to be and she has signed the declaration under penalty of perjury. As such, the court finds this satisfies the evidentiary requirements of foundation and authentication.

Respondent's objection on the basis of completeness of the exhibits is overruled. Respondent is arguing that the entirety of the text thread is not included. However, he does not argue that any of the individual messages themselves has been cut or altered in any way. Furthermore, this goes to the reliability of the evidence, not the admissibility. If Respondent is of the belief that the messages are incomplete he may submit what he believes are complete copies of the messages.

Respondent's objection on the basis of improper argument and characterization is overruled. Respondent provides no legal basis for his position that Petitioner in her own declaration can characterize the tone of the message as she has interpreted them. The objection is overruled.

The remainder of Respondent's objections are likewise overruled as they largely reiterate the foregoing. Respondent also includes objections as to hearsay but, as evidenced by the declaration, the texts have not been submitted to establish the truth of the matters asserted in the texts but instead the nature of the coparenting relationship between the parties.

Turning to the substance of Respondent's position, Respondent asks the court to adopt the legal and physical custody provisions of the CCRC report, the mutual alcohol provisions, vacation notice requirements and co-parenting provisions. He does ask for one modification, that exchanges on non-school days occur at 3:00pm rather than 8:00am. He does not oppose interim orders confirming each party's exclusive temporary use and possession of the properties where each party currently resides though he opposes the request for an order to refinance the Bear Rock and Goyan properties.

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After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modifications. Section 1(a) of the Parenting Plan shall be amended to state the following: "Mother shall have Sunday at 5:00 pm to Wednesday at school drop off (3:30 pm if no school). Father shall have Wednesday from school drop off (3:30 pm if no school) to drop off on Friday (3:30 pm if no school). The parties are to alternate weekends from school drop off (3:30 pm if no school) to Sunday at 5:00 pm." This change is being made expressly in light of Respondent's repeated failures to get the children to school on time. Respondent is admonished to ensure the children are dropped off at school timely. If, moving forward, Respondent consistently gets the children to school on time during his parenting time, the court may consider extending the Sunday visits to Monday morning but Respondent would need to file another RFO to make that change.

Regarding the properties, the court is not ordering the refinance of any of the properties at this time. That said, Petitioner is awarded temporary use, possession and control of the property located at 1093 Goyan Ave. in Placerville. Petitioner is to be solely responsible for the expenses associated with the property including, but not limited to, the mortgage, homeowners insurance, utilities and maintenance costs. Respondent is awarded temporary use, possession, and control of the properties located at 1750 Bear Rock Rd. and 1801 Bear Rock Rd. in Placerville, CA. Respondent shall be solely responsible for the expenses associated with these properties including, but not limited to, the mortgage, homeowners insurance, utilities and maintenance costs.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. SECTION 1(A) OF THE PARENTING PLAN SHALL BE AMENDED TO STATE THE FOLLOWING: "MOTHER SHALL HAVE SUNDAY AT 5:00 PM TO WEDNESDAY AT SCHOOL DROP OFF (3:30 PM IF NO SCHOOL). FATHER SHALL HAVE WEDNESDAY FROM SCHOOL DROP OFF (3:30 PM IF NO SCHOOL) TO DROP OFF ON FRIDAY (3:30 PM IF NO SCHOOL). THE PARTIES ARE TO ALTERNATE

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WEEKENDS FROM SCHOOL DROP OFF (3:30 PM IF NO SCHOOL) TO SUNDAY AT 5:00 PM.”

REGARDING THE PROPERTIES, THE COURT IS NOT ORDERING THE REFINANCE OF ANY OF THE PROPERTIES AT THIS TIME. THAT SAID, PETITIONER IS AWARDED TEMPORARY USE, POSSESSION AND CONTROL OF THE PROPERTY LOCATED AT 1093 GOYAN AVE. IN PLACERVILLE. PETITIONER IS TO BE SOLELY RESPONSIBLE FOR THE EXPENSES ASSOCIATED WITH THE PROPERTY INCLUDING, BUT NOT LIMITED TO, THE MORTGAGE, HOMEOWNERS INSURANCE, UTILITIES AND MAINTENANCE COSTS. RESPONDENT IS AWARDED TEMPORARY USE, POSSESSION, AND CONTROL OF THE PROPERTIES LOCATED AT 1750 BEAR ROCK RD. AND 1801 BEAR ROCK RD. IN PLACERVILLE, CA. RESPONDENT SHALL BE SOLELY RESPONSIBLE FOR THE EXPENSES ASSOCIATED WITH THESE PROPERTIES INCLUDING, BUT NOT LIMITED TO, THE MORTGAGE, HOMEOWNERS INSURANCE, UTILITIES AND MAINTENANCE COSTS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.